

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, JUNE 30, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**IVER CAPITAL CORPORATION vs. LAURA RAYA HERNANDEZ
Case No. CL25-00119**

Plaintiff's Motion for Judgment on the Pleadings

TENTATIVE RULING

THE PARTIES ARE TO APPEAR. The Court also notes that the matter is set for case management conference. At the hearing, the Court's tentative ruling is as follows:

If a served defendant files an answer, the answer must contest either a material allegation of the complaint or asserts an affirmative defense to it. 1 Edmon & Karnow [Weil & Brown] (The Rutter Group 2025) Civil Procedure Before Trial, §6:385, p. 127 [The function of an answer "is to put the case 'at issue' as to all important matters alleged in the complaint that defendant does not want to admit"].

Although Defendant's filing is not titled as an answer, it appears to have been intended as one, and Plaintiff has in this motion treated it as one.

Under C.C.P. §431.20(a), "Every material allegation of the complaint . . . not controverted in the answer, shall, for the purposes of the action, be taken as true."

A material allegation is one "essential to the claim . . . and which could not be stricken from the pleading without leaving it insufficient as to that claim." C.C.P. §431.10(a). An assignee of a debt must plead the assignment in the complaint. Emerald Bay Community Assn. v. Golden Eagle Ins. Corp. (2005) 130 Cal.App.4th 1078, 1091

["Generally, one suing as an assignee must allege and prove the assignment to recover on the assigned claim"].

Plaintiff's complaint contains allegations that the "auto deficiency account was purchased by Plaintiff" [¶4]; that "Plaintiff is a debt buyer [¶5]; that "Plaintiff is the sole owner of the account at issue [¶15]; and that "Original Creditor, for valuable consideration, assigned, transferred, and sent over [to another entity] Defendant's account number", and that this entity "for valuable consideration, assigned, transferred, and set [sic] over all interest in the contract and the vehicle pertaining to Defendant's account number . . . to Plaintiff . . . and Plaintiff is now the holder of the assigned rights in its chose of action of said claims and has the authority to assert the rights of all owners of the debt at issue" [¶19].

Defendant's response admits that the "debt in question was charged off and later sold to the debt collector", but claimed that Plaintiff's counsel "has not provided a contract that establishes my direct obligation to them" and "The only document they have presented does not demonstrate a valid contractual agreement between me and the debt collector." It further alleged Plaintiff failed to respond to repeated requests for "proof of a legitimate contract and a breakdown of the claimed debt".

The Court finds that the Defendant's response fails to contest a material allegation of the complaint or assert an affirmative defense. The Court also notes that there is no written opposition to the motion. Plaintiff has filed proof of service of the motion. The proof of service is attached to Plaintiff's proposed order.

ORDER

The motion for judgment on the pleadings is granted with leave to amend. The Defendant must file an amended answer within 30 days of the date of service of this order. CCP Section 438(h)(2). Plaintiff shall serve this order upon Defendant and file a proof of service with the Court.

LUCIA ACEVES VILLALOBOS vs. GENERAL MOTORS LLC
Case No. CU23-03523

Defendant's Motion to Tax Costs

TENTATIVE RULING

On the Court's own motion, the hearing for Defendant's motion to tax costs is continued to July 7, 2026 at 9:00 a.m.
